



Federal Records Management; Proposed Regulatory Framework

A Proposed Rule by the National Archives and Records Administration on 03/15/2004

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RIN 3095-AB16

AGENCY:

National Archives and Records Administration (NARA).

ACTION:

Advance notice of proposed rulemaking; request for comments.

SUMMARY:

NARA is seeking comments from Federal agencies and the public on (printed page 12101) our regulations for Federal records management. We are considering revising and reorganizing the existing regulations to make the regulations easier to read, understand, and use. A proposed table of contents for the revision, which includes parenthetical references to the current configuration of the regulations, is also provided for review and comment.

Dates:

Submit comments on or before May 14, 2004.

ADDRESSES:

NARA invites interested persons to submit comments on this ANPRM. Please include “Attn: 3095-AB16” and your name and mailing address in your comments. Comments may be submitted by any of the following methods:

E-Mail:

Send comments to comments@nara.gov. If you do not receive a confirmation that we have received your e-mail message, contact Cheryl Stadel-Bevans at 301-837-3021.

Fax:

Submit comments by facsimile transmission to 301-837-0319.

Mail:

Send comments to Regulations Comments Desk (NPOL), Room 4100, Policy and Communications Staff, National Archives and Records Administration, 8601 Adelphi Road, College Park, MD 20740-6001.

Hand Delivery or Courier:

Deliver comments to 8601 Adelphi Road, College Park, MD 20740-6001.

Site Feedback

For further information contact:

Cheryl Stadel-Bevans at telephone number 301-837-3021 or fax number 301-837-0319.

Supplementary Information:

Background

NARA is concerned that the current Federal records management regulations do not reflect many of the recent changes in records management and, therefore, need updating to meet the challenges of a changing recordkeeping environment. We are considering revising the existing regulations to incorporate current standards and practices, such as new guidance on electronic recordkeeping and relevant portions of ISO 15489-1:2001, Records management—Part 1: General (ISO Records Management Standard).

In addition, we propose to restructure the regulations to better reflect the lifecycle of records, from creation through active agency use to disposition. We are considering consolidating all definitions under [36 CFR 1220](#); reorganizing the Parts of [36 CFR Chapter XII](#), Subchapter B, to more clearly reflect the lifecycle of records; and elevating subparts in the current [36 CFR 1228](#) to parts, for better emphasis. The regulations would also be re-written in accordance with plain language principles (such as using the question-style for the section headings) to make them easier to read, understand, and use.

Our goal is to make it easier for Federal agencies and records management contractors to follow our regulations. As part of the revision, we also intend to address the issues raised in the advance notice of proposed rulemaking, Records Management; Electronic Text Documents (RIN 3095-AB05) that was published October 10, 2001 ([66 FR 51740](#)).

More information about NARA's Redesign of Federal Records Management may be found online at http://www.archives.gov/records_management/initiatives/rm_redesign_project.html.

Questions for Comment

What do you think about this proposal? Do you agree that the current Federal records management regulations need revision? Which regulations do you think need updating, revision, or expansion? Are there other records management issues that NARA should address? If you think the NARA regulations need to be revised, are there any priority areas that should be addressed first? Will the proposed reorganization of [36 CFR chapter XII](#), subchapter B, make the regulations easier to use? Will consolidating definitions in one section be useful? How do you see the proposed revision affecting the records management programs of Federal agencies? Please specify what further changes you would like to see.

Dated: March 2, 2004.

Lewis J. Bellardo,

Deputy Archivist of the United States.

The following table of contents is a proposed outline for reorganizing the regulations for Federal records management and includes parenthetical references to the current configuration of the regulations. We attempted to lay out the regulations in a more serviceable order from the current structure. Please review and comment on the outline.

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